

Terms and conditions for international health insurance

VB-KV 2022 (SFE9-D)

We are HanseMerkur Reiseversicherung AG and our head office is in Hamburg. You are our contractual partner, or “policyholder” if you take out an insurance contract, or “policy”, with us.

If you have taken out the policy for yourself, you are also the insured person. You may have (jointly) insured other persons as well. We also refer to any such persons in these insurance terms and conditions as “you”.

For ease of readability, we use the masculine form as standard. This is always intended to include the feminine form.

This document consists of two parts. Which set out the standard terms and conditions for the **Young Travellers** product and for the **Young Travellers Plus** product.

The insurance terms consist in turn of three sections each.

In Section I, you will, in particular, find explanations about the insured persons, time limits for taking out insurance, and premium payments.

In Section II, you will find the scope of benefits for the insurance.

Section III contains an excerpt from the German Insurance Contract Act (VVG).

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Travel insurance Young Travellers

(These contractual arrangements apply to the **Young Travellers** product. For persons up to the age of 39 upon conclusion of the contract.)

Section I – General provisions

1 Insurance cover

1.1 Who is covered by the insurance?

- 1.1.1 The persons covered are those specified in the insurance certificate or the group of persons specified in the insurance certificate.
- 1.1.2 Newborn infants of insured persons shall be included in the health insurance policy after birth, on the same plan as their parents. This is subject to the following conditions:
 - you took out travel health insurance with us through this policy; and
 - the insurance contract was concluded at least three months earlier without interruption and
 - the newborn is insured with us within 2 months of the day of birth with retrospective effect; and
 - no other insurance cover exists for the newborn.

1.2 When does the insurance cover start?

Insurance cover commences after the policy is taken out at the earliest when the insured travel commences. The journey is deemed to have begun upon crossing the border into a foreign country.

1.3 Insurance year and waiting periods

An insurance year is considered to be a period of 12 months calculated from the start of insurance. Insofar as benefits from this insurance are only insured after a waiting period, this waiting period begins when insurance commences and for follow-up contracts, from the beginning of the follow-up contract.

1.4 When does the insurance cover end?

- 1.4.1 Insurance cover ends, for insured events that have not yet come to an end, after the agreed duration, but no later than the end of the insured trip when the border to the home country is crossed after returning from abroad.
- 1.4.2 The insurance cover also ends if the preconditions for a temporary stay abroad are no longer applicable because you have decided to stay abroad permanently or you have permanently returned to your home country.
- 1.4.3 Insurance cover is extended past the agreed end point if the planned end of the trip is delayed for reasons beyond your control.

1.5 Scope of cover of the insurance cover

Insurance cover applies to the agreed local scope of cover for travel abroad. "Abroad" does not apply to the territory of the Federal Republic of Germany or any country in which you have a residence at the time of application.

1.5.1 Insurance cover abroad outside of the scope of cover pursuant to the tariff

If the agreed scope of cover is geographically restricted (e.g. if it excludes the USA and Canada), this restriction ceases to apply under the following conditions:

- Staying in transit, for the duration of the transit.
- In the case of insurance contracts lasting at least 7 months, for stays up to 14 days.

1.5.2 Insurance cover in your home country

Insurance cover also continues when you return to your home country from abroad temporarily. Domestic insurance cover or insurance cover in your home country is limited to a maximum of 3 weeks if the insurance period is at least 7 months.

If the insurance period is at least 12 months, domestic insurance cover or insurance cover in your home country is limited to a maximum of 6 weeks for all stays in the domestic or home country per insurance year.

On our request in the event of an insured event, you must provide evidence of the start and end of each trip to the home country during the period of the contractual term.

2 The insurance policy

2.1 Taking out insurance and commencement of the policy

- 2.1.1 The insurance contract must be concluded before the start of the trip, for its entire duration.
- 2.1.2 The insurance contract is concluded when the correctly-completed application form, which we have provided for this purpose, has been received by us and we have sent you an insurance confirmation. The application is correctly completed only when it contains all the requested information in an unambiguous and complete form

Please note: False information may result in us withdrawing from the insurance contract and in the loss of your insurance cover. In this, we comply with the regulations of Section 19 of the German Insurance Contract Act (Versicherungsvertragsgesetz, VVG). You will find these in Section III.

2.2 Duration and end of the insurance contract

- 2.2.1 The policy ends after the agreed duration.
- 2.2.2 The insurance cover also ends if the preconditions for a temporary stay abroad are no longer applicable because you have decided to stay abroad permanently or you have permanently returned to your home country from abroad.

2.3 When do we pay compensation?

- 2.3.1 We will pay within two weeks. This is subject to the following conditions:
 - that our obligation to pay, the reasons and the amount have been determined.
 - that the necessary evidence – which becomes our property – is available.

The time to the deadline is suspended if you are responsible for our being unable to check your claim.

- 2.3.2 We convert your costs in a foreign currency using the exchange rate to EUR on the day the records are received. The official exchange rate applies, unless you acquired the currency to pay the bills at a less favourable rate. We may subtract the following costs from your benefit:
 - Costs for the transfer of benefits abroad or
 - for special forms of transfer that you requested.

- 2.3.3 You may have insurance cover for trips from other insurers as well. This may for example be the statutory health insurance or another private insurer. If you consequently have claims against other insurers, these take priority. You are not entitled to a greater total benefit than the costs actually incurred. If you have a claim to a benefit from several insurers, you can choose the insurer with which you file the claim.

If you file the claim with us first, we will reimburse you the costs insured under this tariff. We will then clarify with the other insurers whether and how they participate in the costs. We do not require the sharing of costs with private health insurance if this would disadvantage you, e.g. through loss of the premium refund.
You can read further information on this in clause 4.2.2.

2.4 Which legislation applies to the insurance policy?

In addition to these provisions, the Insurance Contract Act (VVG) and German law shall apply.

Note on data protection: We store your personal data to fulfil our obligations under the contract. For further information on data protection and your rights, please refer to www.hmr.de/datenschutz/information or contact us. We will be happy to provide you with a copy.

2.5 When do claims to benefits lapse?

Claims under this insurance policy expire in three years. The expiry is measured from the end of the year in which the claim can be made. If you have made a claim, the expiry period is suspended until our decision is sent to you.

2.6 What is the applicable court of jurisdiction?

You can submit a complaint against us to the court responsible for the district

- where we have our head office,
- where you have your place of residence,
- where you normally live, if you do not have a fixed place of residence.

2.7 What form should a statement that you make to us be in?

Declarations of intent and notifications to us must be in writing (letter, fax, email, electronic data carrier, etc.). The language of the policy is German.

3 Payment of premiums

3.1 Payment of the first or one-time premium

3.1.1 The first or one-time premium is due at the start of the contract.

3.1.2 If you fail to pay the first premium, we will be entitled to withdraw from the contract and will be released from obligations if the premium remains unpaid. In this, we comply with the regulations of Section 37 of the German Insurance Contract Act (Versicherungsvertragsgesetz, VVG). You will find these in Section III.

3.2 Payment of subsequent premiums

If you do not pay subsequent premiums on time, we are entitled to terminate the contract and will be released from obligations. In this, we comply with the regulations of Section 38 of the German Insurance Contract Act (Versicherungsvertragsgesetz, VVG). You will find these in Section III.

3.3 Collection of premiums

If you have agreed with us to take a premium from an account, we will collect it as soon as we receive your direct debit mandate. This payment is considered to be on time

- if we can collect the premium and
- if collection of the correct payment is not disputed.

If we are unable to collect the premium due for a reason beyond your control, the payment shall still be considered to have been made on time if you make said payment immediately after receiving a request from us.

3.4 Offsetting

You may offset against our claims only if the counter-claim is uncontested or legally established.

4 Actions if an insured event occurs (obligations)

Please note the following clauses, in order not to put your insurance cover at risk. Please also see the “Important notes” if an insured event occurs, enclosed with your insurance documents.

4.1 To whom can you direct the claim?

You can send your claims in any form to:
HanseMerkur Reiseversicherung AG, Abt. RLK/Leistung,
P.O. Box, DE-20352 Hamburg,

Email: reiseleistung@hansemerkur.de.

You can also use our online form

<https://mein-hmr.de/service/schadenmeldung/>.

In emergencies, our 24-hour emergency call service is here to help you. You can reach it at any time from anywhere in the world.

4.2 What does your duty of disclosure to minimise damage comprise?

4.2.1 You should make every effort to keep the claim as low as possible and avoid anything that could lead to an unnecessary increase in costs.

4.2.2 Compensation claims against third parties shall be transferred to us as per the statutory regulation in Section 86 of the Insurance Contract Act (VVG), up to the amount of the benefit paid. We shall ensure that this does not disadvantage you. You are also obligated to assist, if necessary, in asserting the claim for compensation.

4.2.3 If the patient is fit to be transported, return transport to the place of residence or to the nearest suitable hospital to the place of residence must be agreed if we approve the return transport according to the type of illness and its need for treatment.

4.3 When is it necessary to contact us immediately?

In the event of in-patient treatment in hospital and before the start of extensive diagnostic and therapeutic measures, you must immediately contact our global emergency call service.

4.4 What information are you obligated to provide?

4.4.1 You must provide true and complete information concerning the claim. You must provide us with any information and suitable proof that we need to be able to determine:

- whether an insured event has occurred; and
- whether and to what extent we will pay benefits.

You must complete our claim form in full and return it.

If we consider it necessary, you are obliged to allow an examination by a doctor appointed by us.

4.4.2 We need the following original evidence from you, which becomes our property:

- Prescriptions together with the doctor's invoice and
- Invoices for medicines and medical aids together with the prescription.
- Official death certificate and a doctor's certificate on the cause of death if costs of repatriation of mortal remains or burial are to be paid.

– Other evidence and receipts requested by us that we need in order to check our duty to provide benefits. This applies only if obtaining this documentation can be reasonably expected of you.

The receipts must

- stipulate the name of the person treated,
- specify the illness and
- include the benefits provided by the treating organisation according to
 - type,
 - location and
 - period of treatment.

If other insurance cover for treatment costs is available and if this is used first, then copies of invoices are sufficient as evidence. These must be annotated to show which items have been reimbursed.

4.5 What are the legal consequences of failures of duty (breaches of obligations)?

If you fail to carry out one of the duties specified above, we will be released from liability either in full or in part. In this, we comply with the regulations of Section 28 (2-4) of the Insurance Contract Act (VVG). You will find these in Section III.

Section II – Policy schedule

1 General rules applying to insurance cover

We provide benefits in the event of an insured event occurring abroad.

1.1 What is an insured event?

Your medically necessary treatment due to illness or the consequences of an accident is considered to be an insured event. The insured event starts with the treatment. It ends once it is medically established that no further treatment is needed. The following are also considered insured events:

- pregnancy and childbirth if the pregnancy had not yet started at the beginning of the insurance contract.
- medically necessary treatments for complaints during pregnancy.
- premature birth up to the 36th week of pregnancy.
- miscarriages.
- medically necessary abortions.
- death.

See clause 2 for details of what precise benefit we provide after an insured event. Please read clause 3 carefully as well. This regulates when we do not provide a benefit, even if an insured event has occurred.

1.2 Which doctors and hospitals can you choose between?

You can choose freely among the following legally-recognised individuals and bodies authorised to give treatment:

- doctors,
- dentists and
- hospitals.

If you have agreed the Premium rate, we will also pay for treatment by the following persons legally recognised to provide medical treatment:

- alternative practitioners
- chiropodists
- osteopaths.

1.3 Which methods do we cover if you need to be examined and treated?

We cover

- examinations,
 - treatment,
 - medication,
- recognised by conventional medicine. We also cover other methods and medications,
- which have proved equally effective in practice or
 - which are only available in the absence of conventional medicine.

These methods include e.g.

- homoeopathic treatment or
- anthroposophical medicine or
- herbal treatment.

In such cases we can, however, reduce the benefits to the amount that would have been incurred by the use of available conventional medicine.

1.4 Deductible

You have a deductible for every insured event of EUR 100, if the Basic rate has been selected. No deductible is payable for the Premium rate.

2 What are the benefits that we pay if an insured event occurs?

We will reimburse the following payments if

- the insured event occurred after the start of insurance cover and
- the waiting times have elapsed.

Depending on the rate you choose, we shall fully reimburse costs that are typical for the local area and incurred in the official currency of the country of destination, unless other amounts are explicitly specified for benefits below.

Your medically necessary treatment due to illness or an accident is considered to be an insured event. The insured event starts with treatment and ends once it is medically established that no further treatment is needed. If treatment needs to be extended to the consequences of an illness or accident that is not causally linked to treatment up to that point, a new insured event shall be considered to have occurred.

Necessary treatment for complaints during pregnancy, premature birth up to the 36th week of pregnancy, miscarriages, medically necessary abortions and death are also considered to be insured events.

2.1 Cost of medical treatment abroad

In the event of an illness or accident during a trip, we reimburse the costs incurred for medical treatment abroad. Medical treatment within the meaning of these terms and conditions is defined as medically necessary

- 2.1.1 out-patient treatment, including medically necessary pregnancy treatment indicated by symptoms, childbirth up to the end of the 36th week of pregnancy (premature birth), treatment relating to a miscarriage and medically necessary abortions;
- 2.1.2 pain-relieving, preservative dental treatment, including straightforward fillings as well as repairs of existing dental prostheses up to EUR 300 per insurance year in accordance with Section I clause 1.3, provided these are carried out or prescribed by a dentist. For the Premium rate, the EUR 300 limit does not apply. We also reimburse the costs of a denture that is required for the first time due to an accident during the insured period, up to a cost of EUR 1,000.
- 2.1.3 medication and dressings prescribed by a doctor ("medication" does not include nutritional products and tonics or cosmetic preparations even if prescribed by a medical practitioner);
- 2.1.4 radiation therapy, light therapy and other physical treatments prescribed by a doctor;
- 2.1.5 massages, medicinal packs, inhalations and physiotherapy prescribed by a doctor;
- 2.1.6 any medical aids prescribed by a doctor that are required for the first time as a result of an accident and used to treat the consequences of the accident;
- 2.1.7 X-ray tests;
- 2.1.8 operations that cannot be postponed;
- 2.1.9 urgent in-patient treatment, if it takes place in a facility that is generally recognised and accredited as a hospital in the country of destination, is under continuous medical management, has adequate diagnostic and therapeutic facilities and keeps medical records;
- 2.1.10 by way of deviation to clause 3.2.11, first and one-time out-patient treatment of psychoanalytical and psychosomatic illnesses treated by a qualified doctor during stays in the USA and Canada. The Premium policy covers out-patient psychoanalytic treatments up to 5 sessions and up to a maximum of EUR 750 per insurance year. If a necessity for in-patient treatment arises from this, the additional return travel costs to the home country are covered. The benefit is for the lowest seating class.
- 2.1.11 Rehabilitation treatment is covered by the Premium policy, subject to the restrictions specified in clause 3.2.5.

2.2 Screening is only covered by the Premium rate

- 2.2.1 Pregnancy screening tests are insured as long as the pregnancy occurred after the start of insurance. Childbirth delivery by doctors is insured after a waiting time of 8 months, as provided for in Section I clause 1.3. The reimbursement of corresponding examination and treatment costs by midwives is possible only if the costs are not also charged concurrently by a doctor.
- 2.2.2 Under the (targeted screening) programmes introduced in the Federal Republic of Germany by law, the policy covers out-patient examinations for early detection of diseases up to EUR 500 per insurance year and preventative gynaecological check-ups for the early detection of cancer up to EUR 100 per insurance year following a waiting period of 6 months, as provided for in Section I clause 1.3.
- 2.2.3 Under the programmes introduced in the Federal Republic of Germany by law, the policy covers preventative dental check-ups up to EUR 100 per insurance year following a waiting period of 6 months as provided for in Section I clause 1.3.

2.3 Information service

2.3.1 Information about local doctors

In the event of illness or accident, we provide information on request through our emergency call service about the options for your medical care. As far as possible, we will provide you with details of German or English-speaking doctors.

2.3.2 Communication of information between doctors

If you are hospitalised due to an illness or the consequences of an accident, we shall facilitate, upon request, contact via our emergency assistance service between a doctor appointed by us and your family doctor and the treating hospital doctors, and arrange for information to be exchanged between the medical practitioners involved during the stay in a hospital. We shall provide information to relatives on request.

2.4 Premature birth cover

In the absence of any other insurance cover for premature births up to the end of the 36th week of pregnancy, we shall reimburse the costs of the necessary treatment of a newborn child abroad up to EUR 50,000. The costs shall be covered in full without a compensation limit if the length of the policy period is at least 3 months.

2.5 Support services

2.5.1 Accompanying person for children in hospital

If an insured child up to the age of 18 requires in-patient treatment, we shall reimburse the cost of accommodation for an accompanying person in a hospital.

2.5.2 Travel assistance for children

We shall organise and pay for the care of a child until the end of its 18th year if the child needs to continue or interrupt the journey alone because all the individuals responsible or the only individual responsible for the child taking part in the journey are unable to continue or end the journey because of death, serious accident or unexpected serious illness.

2.5.3 Delivery of medication

If the insured person requires prescription medicines, which have been lost during the trip, we shall provide a replacement in coordination with the insured person's family doctor and send it to the insured person. The insured person is required to reimburse us for the cost of replacement medications within one month after the end of the trip.

2.5.4 Hospital visit

If it is clear that you will have to stay in a hospital for more than 5 days, we shall arrange for a relative or friend of yours to travel to the location of the hospital and back to their place of residence on request, and we shall cover transport costs for the round trip. However, this is provided that your in-patient

treatment has not been completed by the time the relative or friend arrives.

2.5.5 Hotel costs

We will reimburse your additional accommodation costs and costs incurred by your insured fellow travellers for up to 10 days of additional overnight stays if the booked trip has to be interrupted or extended because you require in-patient treatment at a hospital. The amount is limited to a total of EUR 2,500.

2.6 Transport/repatriation/burial costs

- 2.6.1 We reimburse the additional costs of your repatriation to the nearest suitable hospital at the place of residence, provided the return transport is medically appropriate and reasonable, or hospital treatment abroad is expected to last longer than 14 days according to the prognosis of the doctor providing the treatment.

- 2.6.2 We also assume the costs for a companion as well as the presence of a doctor if this is required, provided this presence is medically necessary, required by the authorities or required by the transport company involved.

- 2.6.3 We reimburse the costs for ambulance transport to in-patient treatment in the nearest suitable hospital and back to the accommodation. If you have agreed the Premium rate, we will also pay for transport for out-patient treatment
- to the nearest doctor who can be reached; or
 - to the nearest suitable hospital that can be reached and
 - and return to the accommodation.

- 2.6.4 If you return from the trip at a later date as a result of a hospital stay lasting at least 10 days, we will reimburse you for the demonstrable additional return travel costs incurred and other additional costs that are immediately incurred as a result of this, such as accommodation and catering costs (not, however, treatment costs). The costs will be reimbursed based on the quality of the originally booked trip. If the return journey needs to be made by aircraft and this is different from the booked journey, only the cost of a seat in the lowest class of the aircraft will be reimbursed.

- 2.6.5 If you have agreed the Premium rate, then, following an accident, we will reimburse costs for search, recovery or rescue efforts by public or privately organised rescue services up to EUR 5,000.

- 2.6.6 We reimburse the additional return travel costs for fellow passengers if they have to terminate their booked stay prematurely due to medically advisable repatriation, or have to extend their stay due to the insured person's stay in hospital.

- 2.6.7 We reimburse the necessary additional costs that arise in the event of your death through the repatriation of mortal remains to your normal place of residence.

- 2.6.8 The costs of burial abroad are covered up to the level of costs that would have been incurred for repatriation of mortal remains.

- 2.6.9 We shall arrange and pay for the collection of luggage, provided all insured adults have returned home or have died.

2.7 Additional assistance abroad

If an illness contracted during a stay abroad requires further treatment which extends beyond the end of the insurance cover because the insured person is shown to be unable to travel home, we are required under these terms and conditions to continue to provide cover (including repatriation should this become necessary) until such time as the person is able to travel again.

2.8 Further benefits

2.8.1 Costs of calling the emergency assistance hotline

If an insured event occurs, we shall reimburse telephone costs incurred by you when calling our emergency assistance hotline.

2.8.2 Expense allowance

If all medical expenses incurred for treatments abroad that are covered by this insurance policy are submitted for compensation to another service provider/insurance company agreeing to share the costs, prior to submitting a claim to us, we shall in the event of in-patient treatment pay – in addition to the reimbursement of costs – an additional daily hospital allowance of EUR 50 per day for up to a maximum of 14 days. In the event of out-patient treatment (irrespective of the number of treatments and illnesses), we shall pay an additional one-time amount of EUR 25 per treated person.

2.8.3 Alternatively, daily hospital allowance

For travel abroad, you may choose to receive either a daily hospital allowance (in the amount of EUR 50 per day for a maximum of 30 days) from the start of the medically necessary in-patient treatment due to an illness or injury suffered during a trip abroad, or you may choose to have the costs of the medically necessary in-patient treatment reimbursed. The decision must be made without delay at the start of the in-patient treatment.

3 Restrictions for insurance cover and exclusion from benefits

3.1 Restrictions of cover

If a medical treatment exceeds the medically necessary level or if the expenses for medical treatment exceed those generally charged for similar medical care in the local area, we can reduce the benefits to a reasonable level.

3.2 Exclusions of cover

We do not provide insurance cover for:

- 3.2.1 treatment abroad that was the sole purpose or one of the purposes for taking the trip;
- 3.2.2 treatment whereby it was clear at the start of the trip that such treatment would be necessary if the trip was undertaken as planned, unless the trip was undertaken due to the death of the spouse or a relative of the first degree;
- 3.2.3 illnesses, including their consequences or consequences of accidents, which were caused by foreseeable acts of war or active participation in civil unrest and were not explicitly included in the insurance cover. In particular, acts of war and internal civil unrest are considered to be foreseeable if the Foreign Ministry of the Federal Republic of Germany issues a travel warning for the country in question before the start of the journey;
- 3.2.4 illnesses and accidents and the consequences of these as a result of deliberate intent;
- 3.2.5 Spa and sanatorium treatments and rehabilitation measures, unless the policy states differently or these treatments result from an insured, entirely in-patient hospital treatment due to a major stroke, major heart attack or a serious skeletal disease (disc surgery, hip replacement) and serve to shorten the stay in an acute hospital, and services which were agreed in writing by us before the start of treatment;
- 3.2.6 addiction treatment, including withdrawal;
- 3.2.7 out-patient treatment in a spa or health resort. The restriction does not apply if treatment is necessary because of an accident that occurred locally. The restriction does not apply to illnesses if you were only visiting the spa or health resort briefly and were not staying for the purpose of treatment;
- 3.2.8 treatments by spouses, parents or children or by persons with whom you are living in their own home or a home being visited; demonstrable costs of materials will be reimbursed in accordance with the policy;
- 3.2.9 illnesses, including the consequences of these or consequences of accidents, which were caused by nuclear energy, or other interventions by an authority;
- 3.2.10 treatment or accommodation caused by infirmity, a need for care or custody;
- 3.2.11 hypnosis, psycho-analytical and psycho-therapeutic treatment, provided no other regulations exist under the policy;
- 3.2.12 dental implants, pivot teeth, bridges, crowns, orthodontic treatment, prophylactic treatment, dental splints and tracks, treatments and implant dental treatments involving functional analysis and functional therapeutic measures, provided no other regulations exist under the policy;
- 3.2.13 vaccination measures or screening examinations, provided no other regulations exist under the policy;
- 3.2.14 treatment for disorders of and/or damage to the reproductive organs; and
- 3.2.15 organ donations and the consequences of these.
- 3.2.16 if you attempt to make fraudulent representations as to the circumstances which are material to the grounds for providing cover and the amount of insurance benefits.
- 3.2.17 Without prejudice to the remaining contractual provisions, insurance cover shall only apply insofar as no economic, trade, or financial sanctions or embargoes imposed by the European Union or the Federal Republic of Germany that are directly applicable to the contractual parties prevent such cover.

This also applies for economic, trade, or financial sanctions or embargoes imposed by the United States of America, provided that these are not in contradiction with the legislation of the European Union (e.g. Blocking Regulation, Regulation (EC) No. 2271/96) or of the Federal republic of Germany (e.g. § 7 Foreign Trade ordinance (Außenwirtschaftsverordnung, AWW))

Section III – Extract from the Insurance Contract Act (Versicherungsvertragsgesetz, VVG)

§ 19 Duty of notification

(1) ¹Up to the submission of his contractual declaration, the policyholder must notify the insurer of the risk circumstances known to him that are relevant for the decision by the insurer to conclude the contract with the agreed content and which the insurer has asked about in text form. ²If the insurer asks questions pursuant to sentence 1 after the contractual declaration by the policyholder, but before the acceptance of the contract, the policyholder is also obligated to give notification in this regard too.

(2) If the policyholder breaches his duty of notification pursuant to paragraph 1, the insurer can withdraw from the contract.

(3) ¹The insurer's right of withdrawal is excluded if the policyholder has not breached the duty of obligation in a wilful or grossly negligent manner. ²In this case, the insurer has the right to terminate the contract giving a period of notice of one month.

(4) ¹ The insurer's right of withdrawal due to a grossly negligent breach of the duty of obligation and his right of termination pursuant to paragraph 3 clause 2 are excluded if he would have concluded the contract even if he was aware of the undisclosed circumstances, even if under different conditions. ²The other conditions, at the insurer's request, become part of the contract retrospectively, with a breach of duty for which the policyholder is not responsible from the current insurance period.

(5) ¹The insurer is entitled to the rights pursuant to paragraphs 2 to 4 only if it has pointed out to the policyholder by separate notification in text form the consequences of a breach of the duty of notification. ²The rights are excluded if the insurer was aware of the circumstance not notified or knew of the incorrectness of the notification.

(6) ¹If in the case of paragraph 4 clause 2 the premium increases by more than 10 per cent or if the insurer excludes the protection against risks for the circumstance that was not notified, the policyholder can terminate the contract within a month after receipt of the notification from the insurer without giving a notice period. ²The insurer must point out this right to the policyholder in the notification.

§ 28 Non-observance of a contractual obligation

(2) Where the contract provides that the insurer is not obligated to effect payment in the event of the non-observance of a contractual obligation on the part of the policyholder, the insurer shall be released from the liability if the policyholder intentionally breached the obligation. In the event of a grossly negligent failure to honour the obligation, the insurer shall be entitled to reduce any benefits payable commensurate with the severity of the policyholder's fault; the burden of proof that there was no gross negligence shall be on the policyholder.

(3) Notwithstanding subsection (2), the insurer shall be liable for performance insofar as the failure to honour the obligation caused neither the occurrence nor the establishment of the insured event nor the establishment or the extent of the insurer's obligation to effect payment. Sentence 1 shall not apply if the policyholder fraudulently breached the obligation.

(4) The condition on which the insurer's entire or partial release from liability in accordance with subsection (2) is based shall, in the event of a violation of an existing duty to provide information or duty of disclosure after the occurrence of an insured event, be the fact that the insurer instructed the policyholder in separate correspondence and in writing of this legal consequence.

§ 37 Delayed payment of first insurance premium

(1) If the single premium or the first premium is not paid in good time, the insurer shall be entitled to withdraw from the contract as long as the payment has not been made, unless the policyholder is not responsible for the non-payment.

(2) If the single premium or first premium has not been paid when the insured event occurs, the insurer shall not be obligated to effect payment, unless the policyholder is not responsible for the non-payment. The insurer shall only be released from liability if he had informed the policyholder of the legal consequence of non-payment of the premium in writing in a separate communication or by means of a conspicuous note in the insurance policy.

§ 38 Delayed payment of first insurance premium

(1) ¹If a renewal premium is not paid on time, the insurer may specify to the policyholder a payment deadline of at least two weeks in writing at its own cost. ²The specification is only valid if it quantifies the amounts of the premium in arrears, the interest and the costs in detail and states the legal consequences associated with the expiry of the deadline pursuant to paragraphs 2 and 3; with combined policies, the amounts are to be stated separately in each case.

(2) If the insured event occurs after expiry of the deadline and if the policyholder is in default with the payment of the premium or interest or costs, the insurer is not obliged to pay benefits.

(3) ¹After expiry of the deadline, the insurer can terminate the contract without giving a period of notice if the policyholder is in arrears with the payment of the amounts owed. ²Notice of termination may be linked with the determination of the term of payment such that it becomes effective on expiry of the deadline if the policyholder is in default of payment at that time. The policyholder must be made explicitly aware of this at the time of termination. ³Termination becomes invalid if the policyholder makes the payment within one month of the termination taking effect or, if it has been linked to the setting of a deadline, within a month after the deadline has expired; paragraph 2 remains unaffected.

§ 86 Assignment of claims

(1) If the policyholder is entitled to claim damages from a third party, this claim shall be assigned to the insurer insofar as the insurer compensates for the loss. The claim may not be assigned to the detriment of the policyholder.

(2) The policyholder shall safeguard his claim for damages or a right serving to safeguard this claim in accordance with the applicable form and time requirements, and he shall assist the insurer wherever necessary in asserting them. If the policyholder intentionally breaches this obligation, the insurer shall not be obligated to effect payment insofar as he cannot, as a result, claim compensation for it from a third party. In the event of a grossly negligent failure to honour the obligation, the insurer shall be entitled to reduce any benefits payable commensurate with the severity of the policyholder's fault; the burden of proof that there was no gross negligence shall be on the policyholder.

(3) If the policyholder claims compensation from a person with whom he is sharing a common household when the loss occurs, assignment in accordance with subsection (1) cannot be asserted, unless that person intentionally caused the loss.

Arbitration bodies

We would like to draw your attention at this point to the possibility of out-of-court dispute resolution.

For health insurance, the voluntary membership of HanseMerkur in the Verband der Privaten Krankenversicherung e.V. (Association of Private Health Insurers) requires, according to the statutes, participation in mediation procedures through a consumer mediation office.

Ombudsman

Private Kranken- und Pflegeversicherung (Private Health & Care Insurance)

Postfach 060222

DE-10052 Berlin

Hotline: +49 1802 550 444

Fax: +49 30 204 589 31

You can find further information online at:
www.pkv-ombudsmann.de.

Travel insurance Young Travellers Plus

(These contractual arrangements apply to the **Young Travellers Plus** product. For persons at the age between 40 and 55 upon conclusion of the contract.)

Section I – General provisions

1 Insurance cover

1.1 Who is covered by the insurance?

- 1.1.1 The persons covered are those specified in the insurance certificate or the group of persons specified in the insurance certificate.
- 1.1.2 Newborn infants of insured persons shall be included in the health insurance policy after birth, on the same plan as their parents. This is subject to the following conditions:
 - you took out travel health insurance with us through this policy; and
 - the insurance contract was concluded at least three months earlier without interruption and
 - the newborn is insured with us within 2 months of the day of birth with retrospective effect; and
 - no other insurance cover exists for the newborn.

1.2 When does the insurance cover start?

Insurance cover commences after the policy is taken out at the earliest when the insured travel commences. The journey is deemed to have begun upon crossing the border into a foreign country.

1.3 Insurance year and waiting periods

- 1.3.1 An insurance year is considered to be a period of 12 months calculated from the start of insurance. Insofar as benefits from this insurance are only insured after a waiting period, this waiting period begins when insurance commences.
- 1.3.2 If you have already commenced your travel before this insurance policy is taken out, a general waiting period of 31 days from the start of the insurance cover pursuant to clause 1.2 is agreed for all benefits from this health insurance for travel abroad. This general waiting time does not apply
 - to the treatment of accidents that occurred after this policy was taken out, or to medical interventions to avert acute mortal danger to you.
 - if a health insurance for travel abroad has demonstrably existed with us or another insurer without interruption from the start of travel until the start of this insurance cover and this health insurance
 - existed for at least 31 days and
 - covered at least out-patient and in-patient treatment costs.

1.4 When does the insurance cover end?

- 1.4.1 Insurance cover ends, for insured events that have not yet come to an end, after the agreed duration, but no later than the end of the insured trip when the border to the home country is crossed after returning from abroad.
- 1.4.2 The insurance cover also ends if the preconditions for a temporary stay abroad are no longer applicable because you have decided to stay abroad permanently or you have permanently returned to your home country.
- 1.4.3 Insurance cover is extended past the agreed end point if the planned end of the trip is delayed for reasons beyond your control.

1.5 Scope of cover of the insurance cover

Insurance cover applies to the agreed local scope of cover for travel abroad. "Abroad" does not apply to the territory of the Federal Republic of Germany or any country in which you have a residence at the time of application.

1.5.1 Insurance cover abroad outside of the scope of cover pursuant to the tariff

If the agreed scope of cover is geographically restricted (e.g. if it excludes the USA and Canada), this restriction ceases to apply under the following conditions:

- Staying in transit, for the duration of the transit.
- In the case of insurance contracts lasting at least 7 months, for stays up to 14 days.

1.5.2 Insurance cover in your home country

Insurance cover also continues when you return to your home country from abroad temporarily. Domestic insurance cover or insurance cover in your home country is limited to a maximum of 3 weeks if the insurance period is at least 7 months.

If the insurance period is at least 12 months, domestic insurance cover or insurance cover in your home country is limited to a maximum of 6 weeks for all stays in the domestic or home country per insurance year.

On our request in the event of an insured event, you must provide evidence of the start and end of each trip to the home country during the period of the contractual term.

2 The insurance policy

2.1 Taking out insurance and commencement of the policy

- 2.1.1 The insurance contract must be concluded before the start of the trip, for its entire duration.
- 2.1.2 The insurance contract is concluded when the correctly-completed application form, which we have provided for this purpose, has been received by us and we have sent you an insurance confirmation. The application is correctly completed only when it contains all the requested information in an unambiguous and complete form

Please note: False information may result in us withdrawing from the insurance contract and in the loss of your insurance cover. In this, we comply with the regulations of Section 19 of the German Insurance Contract Act (Versicherungsvertragsgesetz, VVG). You will find these in Section III.

2.2 Duration and end of the insurance contract

- 2.2.1 The policy ends after the agreed duration.
- 2.2.2 The insurance cover also ends if the preconditions for a temporary stay abroad are no longer applicable because you have decided to stay abroad permanently or you have permanently returned to your home country from abroad.

2.3 When do we pay compensation?

- 2.3.1 We will pay within two weeks. This is subject to the following conditions:
 - that our obligation to pay, the reasons and the amount have been determined.
 - that the necessary evidence – which becomes our property – is available.The time to the deadline is suspended if you are responsible for our being unable to check your claim.
- 2.3.2 We convert your costs in a foreign currency using the exchange rate to EUR on the day the records are received. The official exchange rate applies, unless you acquired the currency to pay the bills at a less favourable rate. We may subtract the following costs from your benefit:
 - Costs for the transfer of benefits abroad or
 - for special forms of transfer that you requested.

- 2.3.3 You may have insurance cover for trips from other insurers as well. This may for example be the statutory health insurance or another private insurer. If you consequently have claims against other insurers, these take priority.

You are not entitled to a greater total benefit than the costs actually incurred. If you have a claim to a benefit from several insurers, you can choose the insurer with which you file the claim.

If you file the claim with us first, we will reimburse you the costs insured under this tariff. We will then clarify with the

other insurers whether and how they participate in the costs. We do not require the sharing of costs with private health insurance if this would disadvantage you, e.g. through loss of the premium refund.
You can read further information on this in clause 4.2.2.

2.4 Which legislation applies to the insurance policy?

In addition to these provisions, the Insurance Contract Act (VVG) and German law shall apply.

Note on data protection: We store your personal data to fulfil our obligations under the contract. For further information on data protection and your rights, please refer to www.hmr.de/datenschutz/information or contact us. We will be happy to provide you with a copy.

2.5 When do claims to benefits lapse?

Claims under this insurance policy expire in three years. The expiry is measured from the end of the year in which the claim can be made. If you have made a claim, the expiry period is suspended until our decision is sent to you.

2.6 What is the applicable court of jurisdiction?

You can submit a complaint against us to the court responsible for the district

- where we have our head office,
- where you have your place of residence,
- where you normally live, if you do not have a fixed place of residence.

2.7 What form should a statement that you make to us be in?

Declarations of intent and notifications to us must be in writing (letter, fax, email, electronic data carrier, etc.). The language of the policy is German.

3 Payment of premiums

3.1 Payment of the first or one-time premium

3.1.1 The first or one-time premium is due at the start of the contract.

3.1.2 If you fail to pay the first premium, we will be entitled to withdraw from the contract and will be released from obligations if the premium remains unpaid. In this, we comply with the regulations of Section 37 of the German Insurance Contract Act (Versicherungsvertragsgesetz, VVG). You will find these in Section III.

3.2 Payment of subsequent premiums

If you do not pay subsequent premiums on time, we are entitled to terminate the contract and will be released from obligations. In this, we comply with the regulations of Section 38 of the German Insurance Contract Act (Versicherungsvertragsgesetz, VVG). You will find these in Section III.

3.3 Collection of premiums

If you have agreed with us to take a premium from an account, we will collect it as soon as we receive your direct debit mandate. This payment is considered to be on time

- if we can collect the premium and
- if collection of the correct payment is not disputed.

If we are unable to collect the premium due for a reason beyond your control, the payment shall still be considered to have been made on time if you make said payment immediately after receiving a request from us.

3.4 Offsetting

You may offset against our claims only if the counter-claim is uncontested or legally established.

4 Actions if an insured event occurs (obligations)

Please note the following clauses, in order not to put your insurance cover at risk. Please also see the “Important notes” if an insured event occurs, enclosed with your insurance documents.

4.1 To whom can you direct the claim?

You can send your claims in any form to:
HanseMerkur Reiseversicherung AG, Abt. RLK/Leistung,
P.O. Box, DE-20352 Hamburg,
Email: reiseleistung@hansemerkur.de.

You can also use our online form

<https://mein-hmr.de/service/schadenmeldung/>.

In emergencies, our 24-hour emergency call service is here to help you. You can reach it at any time from anywhere in the world.

4.2 What does your duty of disclosure to minimise damage comprise?

4.2.1 You should make every effort to keep the claim as low as possible and avoid anything that could lead to an unnecessary increase in costs.

4.2.2 Compensation claims against third parties shall be transferred to us as per the statutory regulation in Section 86 of the Insurance Contract Act (VVG), up to the amount of the benefit paid. We shall ensure that this does not disadvantage you. You are also obligated to assist, if necessary, in asserting the claim for compensation.

4.2.3 If the patient is fit to be transported, return transport to the place of residence or to the nearest suitable hospital to the place of residence must be agreed if we approve the return transport according to the type of illness and its need for treatment.

4.3 When is it necessary to contact us immediately?

In the event of in-patient treatment in hospital and before the start of extensive diagnostic and therapeutic measures, you must immediately contact our global emergency call service.

4.4 What information are you obligated to provide?

4.4.1 You must provide true and complete information concerning the claim. You must provide us with any information and suitable proof that we need to be able to determine:

- whether an insured event has occurred; and
- whether and to what extent we will pay benefits.

You must complete our claim form in full and return it.

If we consider it necessary, you are obliged to allow an examination by a doctor appointed by us.

4.4.2 We need the following original evidence from you, which becomes our property:

- Prescriptions together with the doctor's invoice and
- Invoices for medicines and medical aids together with the prescription.
- Official death certificate and a doctor's certificate on the cause of death if costs of repatriation of mortal remains or burial are to be paid.
- Other evidence and receipts requested by us that we need in order to check our duty to provide benefits. This applies only if obtaining this documentation can be reasonably expected of you.

The receipts must

- stipulate the name of the person treated,
- specify the illness and
- include the benefits provided by the treating organisation according to
 - type,
 - location and
 - period of treatment.

If other insurance cover for treatment costs is available and if this is used first, then copies of invoices are sufficient as evidence. These must be annotated to show which items have been reimbursed.

4.5 What are the legal consequences of failures of duty (breaches of obligations)?

If you fail to carry out one of the duties specified above, we will be released from liability either in full or in part. In this, we comply with the regulations of Section 28 (2-4) of the Insurance Contract Act (VVG). You will find these in Section III.

Section II – Policy schedule

1 General rules applying to insurance cover

We provide benefits in the event of an insured event occurring abroad.

1.1 What is an insured event?

Your medically necessary treatment due to illness or the consequences of an accident is considered to be an insured event. The insured event starts with the treatment. It ends once it is medically established that no further treatment is needed. The following are also considered insured events:

- pregnancy and childbirth if the pregnancy had not yet started at the beginning of the insurance contract.
- medically necessary treatments for complaints during pregnancy.
- premature birth up to the 36th week of pregnancy.
- miscarriages.
- medically necessary abortions.
- death.

See clause 2 for details of what precise benefit we provide after an insured event. Please read clause 3 carefully as well. This regulates when we do not provide a benefit, even if an insured event has occurred.

1.2 Which doctors and hospitals can you choose between?

You can choose freely among the following legally-recognised individuals and bodies authorised to give treatment:

- doctors,
- dentists and
- hospitals.

If you have agreed the Premium rate, we will also pay for treatment by the following persons legally recognised to provide medical treatment:

- alternative practitioners
- chiropodists
- osteopaths.

1.3 Which methods do we cover if you need to be examined and treated?

We cover

- examinations,
 - treatment,
 - medication,
- recognised by conventional medicine. We also cover other methods and medications,
- which have proved equally effective in practice or
 - which are only available in the absence of conventional medicine.

These methods include e.g.

- homoeopathic treatment or
- anthroposophical medicine or
- herbal treatment.

In such cases we can, however, reduce the benefits to the amount that would have been incurred by the use of available conventional medicine.

1.4 Deductible

You have a deductible for every insured event of EUR 100, if the Basic rate has been selected. No deductible is payable for the Premium rate.

2 What are the benefits that we pay if an insured event occurs?

We will reimburse the following payments if

- the insured event occurred after the start of insurance cover and
- the waiting times have elapsed.

Depending on the rate you choose, we shall fully reimburse costs that are typical for the local area and incurred in the official currency of the country of destination, unless other amounts are explicitly specified for benefits below.

Your medically necessary treatment due to illness or an accident is considered to be an insured event. The insured event starts with treatment and ends once it is medically established that no further treatment is needed. If treatment needs to be extended to the consequences of an illness or accident that is not causally linked to treatment up to that point, a new insured event shall be considered to have occurred.

Necessary treatment for complaints during pregnancy, premature birth up to the 36th week of pregnancy, miscarriages, medically necessary abortions and death are also considered to be insured events.

2.1 Cost of medical treatment abroad

In the event of an illness or accident during a trip, we reimburse the costs incurred for medical treatment abroad. Medical treatment within the meaning of these terms and conditions is defined as medically necessary

- 2.1.1 out-patient treatment, including medically necessary pregnancy treatment indicated by symptoms, childbirth up to the end of the 36th week of pregnancy (premature birth), treatment relating to a miscarriage and medically necessary abortions;
- 2.1.2 pain-relieving, preservative dental treatment, including straightforward fillings as well as repairs of existing dental prostheses up to EUR 300 per insurance year in accordance with Section I clause 1.3, provided these are carried out or prescribed by a dentist. For the Premium rate, the EUR 300 limit does not apply. We also reimburse the costs of a denture that is required for the first time due to an accident during the insured period, up to a cost of EUR 1,000.
- 2.1.3 medication and dressings prescribed by a doctor ("medication" does not include nutritional products and tonics or cosmetic preparations even if prescribed by a medical practitioner);
- 2.1.4 radiation therapy, light therapy and other physical treatments prescribed by a doctor;
- 2.1.5 massages, medicinal packs, inhalations and physiotherapy prescribed by a doctor;
- 2.1.6 any medical aids prescribed by a doctor that are required for the first time as a result of an accident and used to treat the consequences of the accident;
- 2.1.7 X-ray tests;
- 2.1.8 operations that cannot be postponed;
- 2.1.9 urgent in-patient treatment, if it takes place in a facility that is generally recognised and accredited as a hospital in the country of destination, is under continuous medical management, has adequate diagnostic and therapeutic facilities and keeps medical records;
- 2.1.10 by way of deviation to clause 3.2.12, first and one-time out-patient treatment of psychoanalytical and psychosomatic illnesses treated by a qualified doctor during stays in the USA and Canada. The Premium policy covers out-patient psychoanalytic treatments up to 5 sessions and up to a maximum of EUR 750 per insurance year. If a necessity for in-patient treatment arises from this, the additional return travel costs to the home country are covered. The benefit is for the lowest seating class.
- 2.1.11 Rehabilitation treatment is covered by the Premium policy, subject to the restrictions specified in clause 3.2.6.

2.2 Screening is only covered by the Premium rate

- 2.2.1 Pregnancy screening tests are insured as long as the pregnancy occurred after the start of insurance. Childbirth delivery by doctors is insured after a waiting time of 8 months, as provided for in Section I clause 1.3. The reimbursement of corresponding examination and treatment costs by midwives is possible only if the costs are not also charged concurrently by a doctor.
- 2.2.2 Under the (targeted screening) programmes introduced in the Federal Republic of Germany by law, the policy covers out-patient examinations for early detection of diseases up to EUR 500 per insurance year and preventative gynaecological check-ups for the early detection of cancer up to EUR 100 per insurance year following a waiting period of 6 months, as provided for in Section I clause 1.3.
- 2.2.3 Under the programmes introduced in the Federal Republic of Germany by law, the policy covers preventative dental check-ups up to EUR 100 per insurance year following a waiting period of 6 months as provided for in Section I clause 1.3.

2.3 Information service

2.3.1 Information about local doctors

In the event of illness or accident, we provide information on request through our emergency call service about the options for your medical care. As far as possible, we will provide you with details of German or English-speaking doctors.

2.3.2 Communication of information between doctors

If you are hospitalised due to an illness or the consequences of an accident, we shall facilitate, upon request, contact via our emergency assistance service between a doctor appointed by us and your family doctor and the treating hospital doctors, and arrange for information to be exchanged between the medical practitioners involved during the stay in a hospital. We shall provide information to relatives on request.

2.4 Premature birth cover

In the absence of any other insurance cover for premature births up to the end of the 36th week of pregnancy, we shall reimburse the costs of the necessary treatment of a newborn child abroad up to EUR 50,000. The costs shall be covered in full without a compensation limit if the length of the policy period is at least 3 months.

2.5 Support services

2.5.1 Accompanying person for children in hospital

If an insured child up to the age of 18 requires in-patient treatment, we shall reimburse the cost of accommodation for an accompanying person in a hospital.

2.5.2 Travel assistance for children

We shall organise and pay for the care of a child until the end of its 18th year if the child needs to continue or interrupt the journey alone because all the individuals responsible or the only individual responsible for the child taking part in the journey are unable to continue or end the journey because of death, serious accident or unexpected serious illness.

2.5.3 Delivery of medication

If the insured person requires prescription medicines, which have been lost during the trip, we shall provide a replacement in coordination with the insured person's family doctor and send it to the insured person. The insured person is required to reimburse us for the cost of replacement medications within one month after the end of the trip.

2.5.4 Hospital visit

If it is clear that you will have to stay in a hospital for more than 5 days, we shall arrange for a relative or friend of yours to travel to the location of the hospital and back to their place of residence on request, and we shall cover transport costs for the round trip. However, this is provided that your in-patient

treatment has not been completed by the time the relative or friend arrives.

2.5.5 Hotel costs

We will reimburse your additional accommodation costs and costs incurred by your insured fellow travellers for up to 10 days of additional overnight stays if the booked trip has to be interrupted or extended because you require in-patient treatment at a hospital. The amount is limited to a total of EUR 2,500.

2.6 Transport/repatriation/burial costs

- 2.6.1 We reimburse the additional costs of your repatriation to the nearest suitable hospital at the place of residence, provided the return transport is medically appropriate and reasonable, or hospital treatment abroad is expected to last longer than 14 days according to the prognosis of the doctor providing the treatment.

- 2.6.2 We also assume the costs for a companion as well as the presence of a doctor if this is required, provided this presence is medically necessary, required by the authorities or required by the transport company involved.

- 2.6.3 We reimburse the costs for ambulance transport to in-patient treatment in the nearest suitable hospital and back to the accommodation. If you have agreed the Premium rate, we will also pay for transport for out-patient treatment
- to the nearest doctor who can be reached; or
 - to the nearest suitable hospital that can be reached and
 - and return to the accommodation.

- 2.6.4 If you return from the trip at a later date as a result of a hospital stay lasting at least 10 days, we will reimburse you for the demonstrable additional return travel costs incurred and other additional costs that are immediately incurred as a result of this, such as accommodation and catering costs (not, however, treatment costs). The costs will be reimbursed based on the quality of the originally booked trip. If the return journey needs to be made by aircraft and this is different from the booked journey, only the cost of a seat in the lowest class of the aircraft will be reimbursed.

- 2.6.5 If you have agreed the Premium rate, then, following an accident, we will reimburse costs for search, recovery or rescue efforts by public or privately organised rescue services up to EUR 5,000.

- 2.6.6 We reimburse the additional return travel costs for fellow passengers if they have to terminate their booked stay prematurely due to medically advisable repatriation, or have to extend their stay due to the insured person's stay in hospital.

- 2.6.7 We reimburse the necessary additional costs that arise in the event of your death through the repatriation of mortal remains to your normal place of residence.

- 2.6.8 The costs of burial abroad are covered up to the level of costs that would have been incurred for repatriation of mortal remains.

- 2.6.9 We shall arrange and pay for the collection of luggage, provided all insured adults have returned home or have died.

2.7 Additional assistance abroad

If an illness contracted during a stay abroad requires further treatment which extends beyond the end of the insurance cover because the insured person is shown to be unable to travel home, we are required under these terms and conditions to continue to provide cover (including repatriation should this become necessary) until such time as the person is able to travel again.

2.8 Further benefits

2.8.1 Costs of calling the emergency assistance hotline

If an insured event occurs, we shall reimburse telephone costs incurred by you when calling our emergency assistance hotline.

2.8.2 Expense allowance

If all medical expenses incurred for treatments abroad that are covered by this insurance policy are submitted for compensation to another service provider/insurance company agreeing to share the costs, prior to submitting a claim to us, we shall in the event of in-patient treatment pay – in addition to the reimbursement of costs – an additional daily hospital allowance of EUR 50 per day for up to a maximum of 14 days. In the event of out-patient treatment (irrespective of the number of treatments and illnesses), we shall pay an additional one-time amount of EUR 25 per treated person.

2.8.3 Alternatively, daily hospital allowance

For travel abroad, you may choose to receive either a daily hospital allowance (in the amount of EUR 50 per day for a maximum of 30 days) from the start of the medically necessary in-patient treatment due to an illness or injury suffered during a trip abroad, or you may choose to have the costs of the medically necessary in-patient treatment reimbursed. The decision must be made without delay at the start of the in-patient treatment.

3 Restrictions for insurance cover and exclusion from benefits

3.1 Restrictions of cover

If a medical treatment exceeds the medically necessary level or if the expenses for medical treatment exceed those generally charged for similar medical care in the local area, we can reduce the benefits to a reasonable level.

3.2 Exclusions of cover

We do not provide insurance cover for:

- 3.2.1 illnesses and symptoms and their foreseeable consequences that exist when the policy is taken out and are known to the insured person as well as the consequences foreseeable for the insured person of such illnesses and accidents that have been treated in the last six months before the policy is taken out.
- 3.2.2 treatment abroad that was the sole purpose or one of the purposes for taking the trip;
- 3.2.3 treatment whereby it was clear at the start of the trip that such treatment would be necessary if the trip was undertaken as planned, unless the trip was undertaken due to the death of the spouse or a relative of the first degree;
- 3.2.4 illnesses, including their consequences or consequences of accidents, which were caused by foreseeable acts of war or active participation in civil unrest and were not explicitly included in the insurance cover. In particular, acts of war and internal civil unrest are considered to be foreseeable if the Foreign Ministry of the Federal Republic of Germany issues a travel warning for the country in question before the start of the journey;
- 3.2.5 illnesses and accidents and the consequences of these as a result of deliberate intent;
- 3.2.6 Spa and sanatorium treatments and rehabilitation measures, unless the policy states differently or these treatments result from an insured, entirely in-patient hospital treatment due to a major stroke, major heart attack or a serious skeletal disease (disc surgery, hip replacement) and serve to shorten the stay in an acute hospital, and services which were agreed in writing by us before the start of treatment;
- 3.2.7 addiction treatment, including withdrawal;
- 3.2.8 out-patient treatment in a spa or health resort. The restriction does not apply if treatment is necessary because of an accident that occurred locally. The restriction does not apply to illnesses if you were only visiting the spa or health resort briefly and were not staying for the purpose of treatment;
- 3.2.9 treatments by spouses, parents or children or by persons with whom you are living in their own home or a home being visited; demonstrable costs of materials will be reimbursed in accordance with the policy;
- 3.2.10 illnesses, including the consequences of these or consequences of accidents, which were caused by nuclear energy, or other interventions by an authority;
- 3.2.11 treatment or accommodation caused by infirmity, a need for care or custody;
- 3.2.12 hypnosis, psycho-analytical and psycho-therapeutic treatment, provided no other regulations exist under the policy;
- 3.2.13 dental implants, pivot teeth, bridges, crowns, orthodontic treatment, prophylactic treatment, dental splints and tracks, treatments and implant dental treatments involving functional analysis and functional therapeutic measures, provided no other regulations exist under the policy;
- 3.2.14 vaccination measures or screening examinations, provided no other regulations exist under the policy;
- 3.2.15 treatment for disorders of and/or damage to the reproductive organs; and
- 3.2.16 organ donations and the consequences of these.
- 3.2.17 if you attempt to make fraudulent representations as to the circumstances which are material to the grounds for providing cover and the amount of insurance benefits.
- 3.2.18 Without prejudice to the remaining contractual provisions, insurance cover shall only apply insofar as no economic, trade, or financial sanctions or embargoes imposed by the European Union or the Federal Republic of Germany that are directly applicable to the contractual parties prevent such cover.

This also applies for economic, trade, or financial sanctions or embargoes imposed by the United States of America, provided that these are not in contradiction with the legislation of the European Union (e.g. Blocking Regulation, Regulation (EC) No. 2271/96) or of the Federal republic of Germany (e.g. § 7 Foreign Trade ordinance (Außenwirtschaftsverordnung, AWW))

Section III – Extract from the Insurance Contract Act (Versicherungsvertragsgesetz, VVG)

§ 19 Duty of notification

- (1) ¹Up to the submission of his contractual declaration, the policyholder must notify the insurer of the risk circumstances known to him that are relevant for the decision by the insurer to conclude the contract with the agreed content and which the insurer has asked about in text form. ²If the insurer asks questions pursuant to sentence 1 after the contractual declaration by the policyholder, but before the acceptance of the contract, the policyholder is also obligated to give notification in this regard too.
- (2) If the policyholder breaches his duty of notification pursuant to paragraph 1, the insurer can withdraw from the contract.
- (3) ¹The insurer's right of withdrawal is excluded if the policyholder has not breached the duty of obligation in a wilful or grossly negligent manner. ²In this case, the insurer has the right to terminate the contract giving a period of notice of one month.
- (4) ¹ The insurer's right of withdrawal due to a grossly negligent breach of the duty of obligation and his right of termination pursuant to paragraph 3 clause 2 are excluded if he would have concluded the contract even if he was aware of the undisclosed circumstances, even if under different conditions. ²The other conditions, at the insurer's request, become part of the contract retrospectively, with a breach of duty for which the policyholder is not responsible from the current insurance period.
- (5) ¹The insurer is entitled to the rights pursuant to paragraphs 2 to 4 only if it has pointed out to the policyholder by separate notification in text form the consequences of a breach of the duty of notification. ²The rights are excluded if the insurer was aware of the circumstance not notified or knew of the incorrectness of the notification.
- (6) ¹If in the case of paragraph 4 clause 2 the premium increases by more than 10 per cent or if the insurer excludes the protection against risks for the circumstance that was not notified, the policyholder can terminate the contract within a month after receipt of the notification

from the insurer without giving a notice period. ²The insurer must point out this right to the policyholder in the notification.

§ 28 Non-observance of a contractual obligation

(2) Where the contract provides that the insurer is not obligated to effect payment in the event of the non-observance of a contractual obligation on the part of the policyholder, the insurer shall be released from the liability if the policyholder intentionally breached the obligation. In the event of a grossly negligent failure to honour the obligation, the insurer shall be entitled to reduce any benefits payable commensurate with the severity of the policyholder's fault; the burden of proof that there was no gross negligence shall be on the policyholder.

(3) Notwithstanding subsection (2), the insurer shall be liable for performance insofar as the failure to honour the obligation caused neither the occurrence nor the establishment of the insured event nor the establishment or the extent of the insurer's obligation to effect payment. Sentence 1 shall not apply if the policyholder fraudulently breached the obligation.

(4) The condition on which the insurer's entire or partial release from liability in accordance with subsection (2) is based shall, in the event of a violation of an existing duty to provide information or duty of disclosure after the occurrence of an insured event, be the fact that the insurer instructed the policyholder in separate correspondence and in writing of this legal consequence.

§ 37 Delayed payment of first insurance premium

(1) If the single premium or the first premium is not paid in good time, the insurer shall be entitled to withdraw from the contract as long as the payment has not been made, unless the policyholder is not responsible for the non-payment.

(2) If the single premium or first premium has not been paid when the insured event occurs, the insurer shall not be obligated to effect payment, unless the policyholder is not responsible for the non-payment. The insurer shall only be released from liability if he had informed the policyholder of the legal consequence of non-payment of the premium in writing in a separate communication or by means of a conspicuous note in the insurance policy.

§ 38 Delayed payment of first insurance premium

(1) ¹If a renewal premium is not paid on time, the insurer may specify to the policyholder a payment deadline of at least two weeks in writing at its own cost. ²The specification is only valid if it quantifies the amounts of the premium in arrears, the interest and the costs in detail and states the legal consequences associated with the expiry of the deadline pursuant to paragraphs 2 and 3; with combined policies, the amounts are to be stated separately in each case.

(2) If the insured event occurs after expiry of the deadline and if the policyholder is in default with the payment of the premium or interest or costs, the insurer is not obliged to pay benefits.

(3) ¹After expiry of the deadline, the insurer can terminate the contract without giving a period of notice if the policyholder is in arrears with the payment of the amounts owed. ²Notice of termination may be linked with the determination of the term of payment such that it becomes effective on expiry of the deadline if the policyholder is in default of payment at that time. The policyholder must be made explicitly aware of this at the time of termination. ³Termination becomes invalid if the policyholder makes the payment within one month of the termination taking effect or, if it has been linked to the setting of a deadline, within a month after the deadline has expired; paragraph 2 remains unaffected.

§ 86 Assignment of claims

(1) If the policyholder is entitled to claim damages from a third party, this claim shall be assigned to the insurer insofar as the insurer compensates for the loss. The claim may not be assigned to the detriment of the policyholder.

(2) The policyholder shall safeguard his claim for damages or a right serving to safeguard this claim in accordance with the applicable form and time requirements, and he shall assist the insurer wherever necessary in asserting them. If the policyholder intentionally breaches this obligation, the insurer shall not be obligated to effect payment insofar as he cannot, as a result, claim compensation for it from a third party. In the event of a grossly negligent failure to honour the

obligation, the insurer shall be entitled to reduce any benefits payable commensurate with the severity of the policyholder's fault; the burden of proof that there was no gross negligence shall be on the policyholder.

(3) If the policyholder claims compensation from a person with whom he is sharing a common household when the loss occurs, assignment in accordance with subsection (1) cannot be asserted, unless that person intentionally caused the loss.

Arbitration bodies

We would like to draw your attention at this point to the possibility of out-of-court dispute resolution.

For health insurance, the voluntary membership of HanseMerkur in the Verband der Privaten Krankenversicherung e.V. (Association of Private Health Insurers) requires, according to the statutes, participation in mediation procedures through a consumer mediation office.

Ombudsman

Private Kranken- und Pflegeversicherung (Private Health & Care Insurance)

Postfach 060222

DE-10052 Berlin

Hotline: +49 1802 550 444

Fax: +49 30 204 589 31

You can find further information online at:
www.pkv-ombudsmann.de.